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Case Number: 24STLC08416 Hearing Date: September 28, 2026 Dept: 26

MOTION FOR JUDGMENT ON THE PLEADINGS-TENTATIVE RULING:

The Motion for Judgment on the Pleadings is denied.

Analysis:

On November 18, 2024, Plaintiff

Creditors Adjustment Bureau, Inc. ("Plaintiff") brought this action against Defendants Caruso's Italian Kitchen dba Carusos Italian Kitchen adba Rok N Sushi adba Carusos Pizza adba Two Guys From Italy Adba Caruso's Italian Kitchen Bar & Grill ("Defendant Caruso's Italian Kitchen"); Hani Mammo aka John Caruso aka Hani Moudafar Mammo aka Hani Johnny Mammo aka Hani Mammoital aka Giovanni Caruso aka Frances Vicuna, an individual doing business as Carusos Pizza adba Two Guys From Italy adba Caruso's Italian Kitchen adba Rok N Sushi ("Defendant Mammo"); Mammo Enterprises LLC dba Rok N Sushi ("Defendant Mammo Enterprises"); Mammoital Inc. #2 dba Mammoital adba Carusos Pizza adba Two Guys From Italy adba Caruso's Italian Kitchen adba Rok N Sushi ("Defendant Mammoital").

On May 1, 2025, Defendants'

Demurrer to the Complaint was overruled as to the first, second, and sixth causes of action, sustained without leave to amend as to the third cause of action, and sustained with leave to amend as to the fourth cause of action. (Minute Order, 05/01/25.) On May 20, 2025, Plaintiff filed the First Amended Complaint alleging (1) open book account; (2) account stated; (3) breach of contract; (4) breach of personal guaranty; and (5) fraudulent inducement.

Defendants Caruso's Italian Kitchen, Mammo, Mammo

Enterprises, and Mammoital filed an "Answer to the Complaint" on June 23, 2025 through counsel. Defense counsel then substituted out as counsel for Defendants on October 27, 2025. On December 31, 2025, the Court denied Plaintiff's Motions to Strike Defendants' Answer on account of them being unrepresented. (Minute Order, 12/31/25.) The Court also set an Order to Show Cause Re: Status of Legal Representation of Defendants, which it discharged on March 26, 2026. (Ibid.) Defendants filed Substitutions of Attorney on May 19, 2026.

Defendants Mammo Enterprises and Mammoital, Inc. filed the instant Motion for Judgment on the Pleadings on June 22, 2026. Defendants Mammo Enterprises and Mammoital, Inc. also filed a Motion to Strike Defendant Mammoital, Inc. #2's Answer, which is concurrently set for hearing with the instant Motion. Plaintiff filed an opposition to the Motion for Judgment on the Pleadings on September 14, 2026 and Defendants Mammo Enterprises and Mammoital, Inc. replied on September 15, 2026.

Discussion

Defendants Mammo Enterprises and Mammoital Inc. move for judgment on the pleadings with respect to the first through third causes of action of the First Amended Complaint. The Motion is brought pursuant to Code of Civil Procedure section 438. Subdivision (c)(1)(B) permits judgment on the pleading against the plaintiff if "the complaint does not state facts sufficient to constitute a cause of action against that defendant." (Code Civ. Proc., § 438, subd. (c)(1)(B).)

As the moving Defendants point out, the standard for a motion for judgment on the pleadings is essentially the same as that applicable to a general demurrer. That is, under the state of the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law. (Bezirdjian v. O'Reilly (2010) 183 Cal.App.4th 316, 321-322, citing Schabarum v. California Legislature (1998) 60 Cal.App.4th 1205, 1216.) Matters which are subject to mandatory judicial notice may be treated as part of the complaint and may be considered without notice to the parties. Matters which are subject to permissive judicial notice must be specified in the notice of motion, the supporting points and authorities, or as the court otherwise permits. (Id.) The motion may not be supported by extrinsic evidence. (Barker v. Hull (1987) 191 Cal.App.3d 221, 236.)

A statutory motion for judgment

on the pleadings brought pursuant to Code of Civil Procedure section 438, et seq. must also be accompanied by a meet and confer declaration. (Code Civ. Proc., § 439 [moving party must file declaration demonstrating an attempt to meet and confer in person or by telephone, at least five days before the date a motion for judgment on the pleadings is filed].) A statutory motion may be granted with or without leave to file an amended pleading. (Code Civ. Proc., § 438, subd. (h)(1).)

Preliminary Considerations

The Motion is not supported by the mandatory meet-and-confer declaration, or any kind of supporting declaration, as required by Code of Civil Procedure section 439. However, failing to meet and confer is not grounds to deny the request for judgment on the pleadings. (Code Civ. Proc., § 439, subd. (a)(4).) Defendants Mammo Enterprises and Mammoital, Inc. are admonished for failing to comply with the meet and confer requirement and warned that future non-compliance may result in the Motion being taken off calendar, or continued.

Moving defendants also request that the Court take judicial notice of certain documents, but then make no mention of the Request for Judicial Notice in the Motion. The Request for Judicial Notice is denied for lack of relevance. (See *OneTaste Inc. v. Netflix, Inc.* (2025) 116 Cal.App.5th 174, 194.)

The Court will consider the Motion as filed on behalf of Defendant Mammoital pending the decision on the Order to Show Cause re Defendant Mammoital's corporate status, which the Court set for hearing on October 19, 2026. As indicated in the Court's ruling on Plaintiff's Motion to Strike, issued contemporaneously with this Order, if Defendant Mammoital fails to demonstrate revivor, its Answer will be struck. If it does demonstrate revivor, it will cure any present deficiency.

Plaintiff argues that the Motion is improper because the Court previously overruled Defendants' Demurrer to counts one and two of the Complaint. Under Code of Civil Procedure section 438, a motion for judgment on the pleadings may be brought even if "[t]he moving party has already demurred to the complaint or answer, as the case may be, on the same grounds as is the basis for the motion provided for in this section and the demurrer has been overruled, provided that

there has been a material change in applicable case law or statute since the ruling on the demurrer.” (Code of Civ. Proc., § 438, subd. (g)(1).) This limitation does not apply because the instant motion does not raise the same arguments as the prior demurrer.

Sufficiency of the Allegations Against Defendant Mammo Enterprises

Moving defendants seeks to strike counts one through, which open book account, account stated, and breach of contract respectively. All three causes of action are alleged against all Defendants. Moving defendants argue that the Complaint does not plead facts with respect to either moving defendant to state a claim, such as any allegations that either moving defendant is indebted to Plaintiff, or entered into an agreement with Plaintiff, and that alter-ego allegations are not sufficiently pled.

The arguments do not support striking the causes of action. As to counts one and two, common counts must allege indebtedness running from the defendant to the plaintiff, a debtor-creditor relationship, and a sum due. (*Farmers Ins. Exchange v. Zerlin* (1997) 53 Cal.App.4th 445, 460.) The First Amended Complaint alleges these facts as to all Defendants. Specifically, it alleges that “Defendants, each of them, became indebted to Plaintiffs Assignor in the amount of ‘the DEBT’ for a balance due on a book account for goods sold and delivered and/or services rendered by Plaintiffs Assignor to Defendant(s) at Defendants’ request.” (FAC, ¶19.) The debt is defined as the outstanding sum of \$31,416.76. (Id. at ¶2.) These allegations are reiterated for the second cause of action. (Id. at ¶21.) Moving defendants do not cite any portion of the First Amended Complaint to demonstrate that the allegations are insufficient, let alone address the allegations cited above.

As to count three, for breach of contract, the Motion is brought on the basis that the subject Agreements only identify “John Caruso” as the signatory and there is no allegation that moving defendants signed or entered into the Agreements. The First Amended Complaint does allege that “Defendant(s)” entered into the First and Second Agreements. (FAC, ¶¶25, 30.) However, the First Agreement is attached to the First Amended Complaint and refers to the customer as “Caruso’s Italian Kitchen” and “Two Guys from Italy.” (Id. at Exh. 1, p. 1.) The Second Agreement also only names “Caruso’s Italian Kitchen” as the customer. (Id. at Exh. 2, p. 1.) Both Agreements are signed by John Caruso. (Id. at Exhs. 1-2.) An allegation

that moving defendants entered into the Agreements, therefore, is not expressly borne out by the Agreements themselves.

The Court nonetheless finds the claim sufficiently pled based on the alter-ego allegations. One customer, “Caruso’s Italian Kitchen” is named as a co-defendant. Both customers in the Agreements, “Caruso’s Italian Kitchen” and “Two Guys from Italy”, are pled as the dbas of other defendants, including Defendant Mammoital. (FAC, ¶¶6-9.) The signatory “John Caruso” is also identified as a dba. (FAC, ¶7.) The FAC alleges that all defendants were alter-ego and/or successors-in-interest of the other defendants, including alleging that all defendants “conduct the same business (ie: restaurants) with defendant HANI MAMMO” at the head, that all “share a unity of interest and ownership,” and that the “corporate defendants are merely instrumentalities or conduits of defendant HANI MAMMO in pursuit of a single business venture,” among other allegations. (See id., ¶¶13-19.)

Moving defendants challenge the sufficiency of the alter ego allegations as conclusory and argue that a series of more specific facts must be alleged. (Citing *Sonora Diamond Corp. v. Superior Court* (2000) 83 Cal.App.4th 523, 538–539; *Leek v. Cooper* (2011) 194 Cal.App.4th 399, 415.) But the Court agrees with Plaintiff that moving defendants ask the Court to impose too great a burden at this stage. *Sonora Diamond Corp.* involved an evidentiary inquiry into alter ego and did not concern the sufficiency of pleadings. (*Sonora Diamond Corp.*, supra, 83 Cal.App.4th at 540.) In *Leek*, the Court of Appeals ruled that the pleading must allege “sufficient facts” not “specific facts”, and the allegations assessed by the court were vastly dissimilar to those at issue here. (*Leek*, supra, 194 Cal.App.4th at 415.) As other decisions have recognized, ultimate facts are sufficient at this stage. (*Rutherford Holdings, LLC v. Plaza Del Rey* (2014) 223 Cal.App.4th 221, 236 [“Defendants argue that *Rutherford* failed to allege specific facts to support an alter ego theory, but *Rutherford* was required to allege only ‘ultimate rather than evidentiary facts.’”].) These facts include commingling of funds and other assets, identical equitable ownership, failure to maintain corporate formalities, inadequate capitalization, or use of corporate assets for personal purposes. (*Sonora Diamond Corp.*, supra, 83 Cal.App.4th at 538.)

The FAC satisfies the standard. The allegation “that all defendants are

alter-egos of each other as they conduct the same business (ie: restaurants) with defendant HANI MAMMO being the main or only officer, director, manager, and/or incorporator of all other named Defendants, and operate under defendant HANI MAMMO's direct financing and control" alleges unity of interest and ownership. (FAC, ¶14.) The allegation that the corporate Defendants are "conduits of defendant HANI MAMMO in pursuit of a single business venture" alleges identical equitable ownership and use of corporate assets for personal purposes. (Id. at ¶16.) The FAC alleges an inequitable result where it alleges that Defendant Mammo uses this unity of interest and ownership to perpetuate a fraud, i.e., to defraud Defendants' creditors. (Id. at ¶¶13, 17.)

Accordingly, the Court will deny the motion for judgment on the pleadings.

Conclusion

Based on the foregoing, the Motion for Judgment on the Pleadings is denied.

Moving party to give notice.

MOTION TO STRIKE - TENTATIVE RULING:

Plaintiff Creditors Adjustment Bureau, Inc.'s Motion to Strike Defendant Mammoital, Inc. #2's Answer is denied.

The Court orders sets an Order to Show Cause re the Corporate Status of Defendant Mammoital, Inc. #2 for October 19, 2026.

Analysis:

On November 18, 2024, Plaintiff Creditors Adjustment Bureau, Inc. ("Plaintiff") brought this action against the following four defendants: [1] Defendants Caruso's Italian Kitchen dba Carusos Italian Kitchen adba Rok N Sushi adba Carusos Pizza adba Two Guys From Italy Adba Caruso's Italian Kitchen Bar & Grill ("Defendant Caruso's"); [2] Hani Mammo aka John Caruso aka Hani Moudafar Mammo aka Hani Johnny Mammo aka Hani Mammoital aka Giovanni Caruso aka Frances Vicuna, an individual doing business as Carusos Pizza adba Two Guys From Italy adba Caruso's Italian Kitchen adba Rok N

Sushi ("Defendant Mammo"); [3] Mammo Enterprises LLC dba Rok N Sushi ("Defendant Mammo Enterprises"); and [4] Mammoital Inc. #2 dba Mammoital adba Carusos Pizza adba Two Guys From Italy adba Caruso's Italian Kitchen adba Rok N Sushi ("Defendant Mammoital").

On May 1, 2025, Defendants'

Demurrer to the Complaint was overruled as to the first, second, and sixth causes of action, sustained without leave to amend as to the third cause of action, and sustained with leave to amend as to the fourth cause of action.

(Minute Order, 05/01/25.) On May 20, 2025, Plaintiff filed the First Amended Complaint alleging (1) open book account; (2) account stated; (3) breach of contract; (4) breach of personal guaranty; and (5) fraudulent inducement.

Defendants filed an "Answer to the Complaint" on June 23, 2025 through counsel. Defense counsel then substituted out as counsel for Defendants on October 27, 2025. On December 31, 2025, the Court denied Plaintiff's Motions to Strike the Answer as to Defendant Caruso's, Defendant Mammo Enterprises, and Defendant Mammoital due to lack of representation. (Minute Order, 12/31/25.) The Court set an Order to Show Cause Re: Status of Legal Representation of the Entity Defendants, which it discharged on March 26, 2026. (Ibid.) Defendants filed Substitutions of Attorney on May 19, 2026.

Defendants Mammo Enterprises and Mammoital filed a Motion for Judgment on the Pleadings, which is set to be heard concurrently with the instant Motion to Strike Answer. Plaintiff filed the instant Motion to Strike Defendant Mammoital's Answer on July 21, 2026. Defendant Mammoital filed an opposition on September 15, 2026 and Plaintiff replied on September 18, 2026.

Discussion

The Motion to Strike Answer is brought pursuant to Code of Civil Procedure section 436 on the grounds that Defendant Mammoital has been a suspended corporation since 2021, and under the Revenue & Taxes Code is not entitled to participate in this action. Code of Civil Procedure section 436 allows the Court to "strike out all or any part of any pleading not drawn or filed in conformity with the laws of this State, a court rule, or an order of the court." (Code Civ. Proc., § 436, subd. (b).) Under Revenue & Taxes Code sections 23301 and 23302, a corporation cannot defend a lawsuit if it is suspended for failing to pay taxes. (See *Ransome-Crummey Co. v. Superior*

Court in and for Santa Clara County (1922) 188 Cal. 393, 397 ["During the time its taxes were unpaid, petitioner was shorn of all rights save those expressly reserved by the statutes. The right to institute or maintain actions is not included in this reservation, but is denied to corporations as a part of the penalty."].)

Motions to strike in the Limited Civil Court may only challenge pleadings on the basis that "the damages or relief sought are not supported by the allegations of the complaint." (Code of Civ. Proc., § 92, subd. (d).) The instant Motion to Strike does not pertain to whether the damages or relief sought in Defendant Mammoital's Answer are supported by the allegations, and therefore, cannot be raised in this Court by motion of a party. Furthermore, "the grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice." (Code Civ. Proc., § 437, subd. (a).) Plaintiff's Motion does not refer to any part of Defendant Mammoital's Answer, nor makes a request for judicial notice of the fact of its purported corporate suspension. Instead, Plaintiff simply attaches what it contends is a true and correct copy of a suspension report to the Motion. (Motion, Brown Decl., ¶4 and Exh. 1.) The supporting declaration provides no facts from which the Court can determine the source or accuracy of the report. (Ibid.)

Therefore, the Motion fails to demonstrate that Defendant Mammoital's Answer should be stricken, either from the face of the challenged pleading or from any matter of which the Court must or may take judicial notice. In its reply, Plaintiff argues that the law regarding suspended corporations is "self-executing," but cites no authority for this rule. (Reply, p. 2:26-28.)

That said, Plaintiff is correct that "a suspended corporation may not prosecute or defend an action in a California court." (Timberline, Inc. v. Jaisinghani (1997) 54 Cal. App. 4th 1361, 1365.) Defendant Mammoital admits the status, and states that it is in the process of obtaining a certificate of revivor. Obtaining a certificate of revivor would excuse any past delinquency, with respect to the validity of filings. (See id. at 1366 ("the revival of corporate powers by the payment of delinquent taxes has been held to validate otherwise invalid prior action.").) The Court may strike an improper pleading or otherwise enforce the principle at issue on its own motion, even if Plaintiff's motion is not proper. (See Code Civ. Proc., § 436.) "[I]f

the corporation's status only comes to light during litigation, the normal practice is for the trial court to permit a short continuance to enable the suspended corporation to effect reinstatement (by paying back taxes, interest and penalties) to defend itself in court." (Timberline, 54 Cal. App. 4th at 1367.) Accordingly, the Court sets for hearing an Order to Show Cause re Defendant Mammoital's corporate status and ability to represent itself on the date set below. Defendant Mammoital must file and serve a declaration under penalty of perjury attaching any certificate of revivor no later than five days before the hearing date. If Defendant Mammoital does not establish that its corporate status has been revived on or before that date, the Court will strike its Answer, and Plaintiff may seek entry of default.

Conclusion

Plaintiff Creditors Adjustment Bureau, Inc.'s Motion to Strike Defendant Mammoital, Inc. #2's Answer is denied.

The Court orders sets an Order to Show Cause re the Corporate Status of Defendant Mammoital, Inc. #2 for October 19, 2026.

Moving party to give notice.